

Court No. - 37

Case :- WRIT - C No. - 13585 of 2014

Petitioner :- Smt. Mamta Devi Srivastava

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- R.K. Mishra

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

Put up on 12.3.2014 as a fresh case so as to enable Dr. S.K. Yadav, learned counsel for the respondents no. 2 and 3 to obtain instructions.

Order Date :- 6.3.2014

p.s.

(Attau Rahman Masoodi, J.)

(Vineet Saran, J.)

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Heard learned counsel for the petitioner as well as learned Standing Counsel appearing for the respondent no. 1 and Dr. S.K. Yadav, learned counsel appearing for the respondents no. 2 and 3 and have perused the record.

Earlier time was granted to Dr. S.K. Yadav, learned counsel for the respondents no. 2 and 3 to obtain instructions which he states that he has received. With consent of the learned counsel for the parties, this writ petition is being disposed of at this stage without calling for a counter affidavit.

The case of the petitioner is that she had an electricity connection granted by the respondent - Kanpur Electricity Supply Company Ltd. Since there was default in payment of the electricity bills, on 19.12.2008 the electricity line of the petitioner was disconnected. Thereafter, according to the petitioner on 27.2.2010 the petitioner made an application for reconnection of her electricity line and installation of meter and deposited a sum of Rs. 1,000/- for the same. Pursuant thereto, according to the petitioner, on 6.9.2011 the electricity line of the petitioner was restored and the meter was installed in the house of the petitioner. She is now aggrieved by the demand notice dated 20.2.2014 for a sum of Rs. 1,29,558/- stating that the same is for the bills upto

December, 2013. Challenging the same, this writ petition has been filed.

On having received instructions, Dr. S.K. Yadav, learned counsel for the respondents no. 2 and 3 states that after the electricity line of the petitioner was disconnected on 19.12.2008, the petitioner had infact filed an application for reconnection on 19.5.2009 and thereafter the electricity line of the petitioner was reconnected. However, the deposit of Rs. 1,000/- which is said to have been made by the petitioner on 27.2.2010 was not with regard to reconnection of the electricity line but was for installation of fresh meter as a dispute with regard to the meter reading had been raised by the petitioner and in pursuance thereof fresh meter was installed at the premises of the petitioner on 6.9.2011.

Learned counsel for the petitioner has, however, accepted the fact that ever since the reconnection and re-energisation of electricity line of the petitioner (which according to the petitioner was in the year 2011 and according to the respondent in the year 2009) the petitioner has not paid any amount towards consumption of electricity even though it is not denied that the electricity connection of the petitioner has been continuing since then. The submission of the petitioner that any dues which are against any consumer beyond a period of 12 months would not be recoverable as provided under Section 56 (2) of the Electricity Act, 2003 is not worthy of acceptance in view of the fact that present is not the case with regard to disconnection but it is for non payment of electricity bills as the petitioner is continuing to be supplied electricity and according to the respondent regular bills showing arrears are being sent to the petitioner which have not been paid by her. Although the fact of the bills being sent to the petitioner is disputed by the petitioner but we are of the opinion that such being a question of fact, the same cannot be considered and decided in writ jurisdiction. It

appears to the Court that the case in hand is one relating to the dispute with regard to the bills for which the petitioner has an alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. As such, on the ground that disputed questions of facts are involved in this writ petition and also that the petitioner has an alternative remedy available in law, we would not be inclined to interfere in this writ petition. Even otherwise, when the petitioner admits that after re-energisation of electricity line which may be from 2008-09 or 2010-11 the petitioner has not paid any bills hence this Court would not be inclined to exercise its extraordinary jurisdiction under Article 226 of the Constitution of India in favour of a person who is a gross defaulter of electricity dues.

This writ petition is, accordingly, dismissed. No order as to costs.

Order Date :- 13.3.2014

p.s.

(Attau Rahman Masoodi, J.) (Vineet Saran, J.)